

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 10, 2017

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook (arriving at 6:03 p.m.), Richard Johnson, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Johnson moved to approve, seconded by Mr. Roybal. Motion carried. Voting “yes” -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on March 27, 2017. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Tyrrell Chevrolet) and vacated Council Chambers. Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Johnson. Motion carried. Voting “yes” -- all members of the governing body. Following announcement of the vote, Mr. Roybal returned to Council Chambers.

Mayor Orr opened a public hearing to receive comments and input for a transfer of ownership for a retail liquor license application filed with the City Clerk’s Office for Evergreen Restaurant LLC #5011, d/b/a Outback Steakhouse #5011, 1626 Fleischli Parkway, Cheyenne, Wyoming (License currently held by Outback Steakhouse of Florida, LLC, d/b/a Outback Steakhouse, 1626 Fleischli Parkway, Cheyenne, Wyoming). Brian Proffitt, attorney representing Evergreen Restaurant Group, explained the transfer request is due to franchise restructuring. There being no further comments or input, Mayor Orr closed the hearing and referred the application to Finance Committee.

Mayor Orr opened a public hearing to receive comments and input for a retail liquor license transfer of ownership application filed with the City Clerk’s Office for Deep South, LLC, d/b/a Redwood Lounge, 2105 East Lincolnway, Cheyenne, Wyoming (License currently held by High Plains Entertainment, Inc., d/b/a Redwood Lounge and Package Liquor, 2105 East Lincolnway, Cheyenne, Wyoming). Wayne Layton, applicant, commented in support of the application and his desire to make business improvements. There being no further comments or input, Mayor Orr closed the hearing and referred the application to Finance Committee.

Mayor Orr opened a public hearing to receive comments and input for a restaurant liquor license application filed with the City Clerk's Office for Wing Shack Enterprises, Inc., d/b/a Wing Shack, 1439 Stillwater Avenue, Units 1 and 2, Cheyenne, Wyoming. Steve Murlowski, Operations Manager, provided an overview of similar business operations in Colorado, TIPS training awareness, and commented in support of the application. There being no further comments or input, Mayor Orr closed the hearing and referred the application to Finance Committee.

Mayor Orr opened a public hearing to receive comments and input to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exists for a parcel of land situate in the NW ¼ of Section 21, T.14N., R.66W. of the 6th P.M., Laramie County, Wyoming (located northwest of the intersection of Point Bluff and Crane Bluff). Eric Hammer, Development office, provided information on the property requested by the landowner to be annexed and reviewed requirements of and compliance with annexation conditions contained in state statutes. Frank Cole, President, United Western Corporation, provided information on the proposed residential housing project planned for the property. There being no further comments or input, Mayor Orr closed the hearing.

ORDINANCE – 3rd READING – Creating the Civic Center Commons Project Management Team and providing procedures for the operation thereof. Jack Speight spoke in opposition of the ordinance. Topics included in his comments were: Future developments and improvements in the West Edge area; private investors; funding sources; FEMA grant and 6th penny funds; site remediation, environmental studies, and developing the area in phases. During his comments, Mr. Speight displayed and referenced an aerial map, and submitted informational handouts (on file with City Clerk's office). Gene MacDonald, Ayres Associates, provided detailed information on the project. Topics included in his comments were: Expertise of Ayres staff involved in the project; environmental site assessments and studies; voluntary remediation program; FEMA grant and EPA revolving loan program; cost benefit ratios, and drainage paths and flood control measures for the Capitol Basin, 19th and 26th St. drainage projects and the downtown area. The following expressed concerns with the Civic Center Commons Project, including problems that had been raised relative to the use of federal funds and effect of reduced parking for Civic Center patrons: Barbie Harrington, Major Dorr and Brad Harrington. Speaking in favor of the project involving redevelopment of the area and addressing flood control problems were: Dean Dexter and Dave Teubner, Warehouse 21; Carrie Hufney; Howard Rodack; Tony Lucero, A & C Feed, and Joe Dougherty. Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Case. Mr. Shanor moved to amend by substitute, seconded by Dr. Rinne. Discussion included content of the proposed substitute, which would create a Civic Center Commons Project Oversight Team (CPOT), instead of a Project Management Team, to oversee the administration of the project; provide disclosure of documentation to FEMA and an amended scope of services to be provided by DHM Design Corporation. Commenting in support of the amendment, including redevelopment of the area and implementing flood control measures were: Mr. Speight, Jordan Dean, Danielle Marks, Tom Dickson and Glen Garrett. Discussion followed and included the following topics: Lack of timeliness in receiving the proposed substitute prior to the meeting; transparency; FEMA involvement, and the importance of flood control in the downtown area. Upon inquiry to City Council members and there being no objection voiced, Mayor Orr

expressed her concern with the lack of timeliness in receiving the proposed substitute for review; provided information on project funding sources and status of the FEMA grant, and posed questions with regard to whether the substitute contained a sunset clause, whether DHM had been contacted concerning a change in scope of work under their contract, and whether it was applicable to name a specific design company by name in an ordinance. In response, Mr. Shanor stated a sunset provision was contained in Section 4(A) of the substitute; that DHM has been contacted and they are willing to look at additional services, and that DHM has a current contract with the City specific to the project. Upon inquiry, Sylvia Hackl, City Attorney, advised that if there is further amendment made to Section 4(A) clarifying an ordinance "sunset" date, there shouldn't be a major concern with referencing DHM in the ordinance. Motion to amend carried. Voting "yes" -- all members of the governing body with the exception of Mr. Johnson and Mayor Orr voting "no". Mr. Shanor moved to amend by adding the following sentence at the end of Section 4(A), seconded by Mr. Cook: "This ordinance shall sunset upon completion of all project activity and shall be of no further force and effect". Motion to amend carried. Voting "yes" -- all members of the governing body. Dr. Rinne moved to amend Section 4(C) by adding "and any other department that the project oversight team deems necessary" to the end of the first sentence, seconded by Mr. Shanor. During brief explanation of the intent of the proposed amendment, Ms. Hackl offered to provide different wording on the topic. Motion to amend failed. Voting "no" -- all members of the governing body. Mr. Shanor moved to amend Section 4(C) by revising the first sentence to read as follows, seconded by Mr. Roybal: "The CPOT and DHM will work directly with any City departments and employees deemed necessary for the completion of the project." Motion carried. Voting "yes" -- all members of the governing body. Main motion as amended by substitute, as twice amended, carried. Voting "yes" -- all members of the governing body with the exception of Mr. Johnson and Mayor Orr voting "no". (#4170)

Following a brief minute recess, Mayor Orr reconvened the meeting at 8:35 p.m.

ORDINANCE – 3rd READING – Amending various chapters and sections contained in Title 5, Business Licenses and Regulations, and Title 8, Health and Safety, of the Cheyenne City Code, pertaining to approval and issuance of certain business licenses and permits. Reporting for Finance Committee, Mr. Luna moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body. (#4171)

ORDINANCE – 3rd READING - An Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from CB Community Business to LI Light Industrial for a portion of Block 1 Tyrrell Addition; and a portion of Block 1 Husky Industrial Addition First Filing being situated in a portion of the West ½ Section 1, T13N, R67W, of the 6th Principal Meridian, Cheyenne, Wyoming (located along Cutler Road north of West Lincolnway). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting "yes" -- all members of the governing body. (#4172)

ORDINANCE – 3rd READING – An Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, Section 5.1.3 Official Zoning Map, and Section 5.6.2 PUD – Planned Unit Development District, of the Unified Development Code, changing the zoning classification from HR-1 High Density Residential to PUD Planned Unit

Development for a portion of Lot 2, Block 1 of Buffalo Ridge Estates 10th Filing, City of Cheyenne, Laramie County, Wyoming (located west of and adjacent to Sunflower Road, south of Sagebrush Ave.). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” -- all members of the governing body. (#4173)

ORDINANCE – 1st READING – An Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from NR-2 Neighborhood Residential – Medium Density to NR-3 Neighborhood Residential – High Density for Lots 1-40, Block 1, Shiraz Enclave, City of Cheyenne, Laramie County, Wyoming (located east of and adjacent to Snyder Ave., south of W. Jefferson Road), to be known as Grand Mesa – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING - An Ordinance annexing to the City of Cheyenne, Wyoming a parcel of land situate in the NW¼ of Section 21, T.14N., R.66W., of the 6th P.M., Laramie County, Wyoming (located northwest of the intersection of Point Bluff and Crane Bluff) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING - An Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from LR – Low Density Residential (County) to MR Medium-Density Residential for a parcel of land situate in the NW¼ of Section 21, T.14N., R.66W., of the 6th P.M., Laramie County, Wyoming (located northwest of the intersection of Point Bluff and Crane Bluff) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – An Ordinance creating Sections 8.60.181, Notice to Lienholder, and 8.60.182, Junk Vehicle Impoundment-Transfer of Title to the City, of Chapter 8.60, Nuisances, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – An Ordinance Amending Section 2.29.010, Purpose-Authority-General Provisions, of Chapter 2.29, Community Service Officers, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Johnson)

[CA] RESOLUTION – Authorizing the City of Cheyenne to re-acquire the real property located at 206 West Lincolnway, Cheyenne Wyoming. Motion (per Consent Agenda) carried. (#5841)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Tyrrell Addition, 2nd Filing, a replat of a portion of Lot 9, Block 3, Replat of Westland Subdivision; a portion of vacated and abandoned State Highway U.S. Hwy 30 and a portion of Block 1, Husky Industrial Addition First Filing and Block 1, Tyrrell Addition being situated in a portion of the West ½ Section 1, T13N, R67W, of the 6th Principal Meridian, Laramie County,

Wyoming (located along Cutler Road, north of West Lincolnway). Motion (per Consent Agenda) carried. (#5842)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Waterford Square 3rd Filing, a replat of Lots 28 & 29, Block 7, Lots 1 & 31, Block 5 and a portion of Tray More Boulevard and adjacent alleys, Waterford Square, City of Cheyenne, Laramie County, Wyoming (located south of the intersection of Tray More Boulevard and Waterford Boulevard) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Waterford Square 4th Filing, a replat of all of Block 8 (Lots 1-9 inclusive), Waterford Square, City of Cheyenne, Laramie County, Wyoming (located northwest of the intersection of Avenue C-4 and Turk Court) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Swan Ranch Rail Park Tenth Filing, a replat of Lots 1, 2 and 3, Block 2 of Swan Ranch Rail Park Second Filing, being situated in a portion of the E½ of Section 33, Township 13 North, Range 67 West of the 6th Principal Meridian, Laramie County, Wyoming (located at the southwest corner of the intersection of Berwick and Trumpeter Drives) -- referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Western Hills 15th Filing, a replat of all of Lots 9, 10, 11, 12 and 13, Block 40, Western Hills, 10th Filing Replat, City of Cheyenne, Laramie County, Wyoming (located between Silver Sage Avenue, Ranger Drive and Dogwood Avenue) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION - Acknowledging receipt of the City of Cheyenne Capital Improvement Plan dated March 17, 2017 – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2017 budget of the City of Cheyenne according to the provisions of W.S. 16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] Recommendation by the Governing Body to approve the Sunflower Road Planned Unit Development Preliminary Plan for a portion of Lot 2, Block 1 of Buffalo Ridge Estates 10th Filing, City of Cheyenne, Laramie County, Wyoming (located west of and adjacent to Sunflower Road, south of Sagebrush Ave.). Motion (per Consent Agenda) carried.

[CA] Preliminary Plat for The Bluffs 11th Filing, a parcel of land situated in a portion of the NW¼ of Section 21, T.14N., R.66W., of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located northwest of the intersection of Point Bluff and Crane Bluff) – referred to Public Services Committee.

[CA] Agreement between the City of Cheyenne, Laramie County Sheriff's Department and Laramie County, Wyoming, for housing City prisoners at the Laramie County Detention Center. Motion (per Consent Agenda) carried. (#6639)

[CA] Juvenile Housing Agreement between Laramie County and the City of Cheyenne for the housing of juvenile detainees in the Laramie County Juvenile Services Center located at the Archer Complex. Motion (per Consent Agenda) carried. (#6640)

[CA] Agreement between the City of Cheyenne and the Wyoming Tribune Eagle for the Fridays on the Plaza summer concert series – referred to Finance Committee.

[CA] 2017-2018 Collective Labor Agreement between the City of Cheyenne, and the Cheyenne Firefighters Local Union No. 279, International Association of Firefighters – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District #1 to provide transportation for the Summer Rec Camp Program – referred to Finance Committee.

[CA] Consideration of Bid #S-9-17 for a contract between the City of Cheyenne, Engineering Department, and American Striping Company, Englewood, CO, for the 2017 Pavement Markings Project (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (approved bid submitted by American Striping Company, Englewood, CO, in an amount not to exceed \$87,037.00). (#6641)

[CA] Consideration of Bid #E-19-17 for furnishing 20 new police vehicles with equipment installed for the Police Department (2011-2014 and 2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-7-17 for a contract between the City of Cheyenne, Engineering Department, and Simon Contractors, Cheyenne, for the Capitol Basin 26th Street Interceptor Storm Sewer Project (1% Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Contract Modification No. 7 to Contract No. 6219 between the City of Cheyenne, Parks and Recreation Department, and RECCO, Inc., d/b/a Five-R Co., for the Cheyenne Botanic Gardens Project to increase the guaranteed maximum price – referred to Finance Committee.

[CA] Amendment No. 2 to Contract No. 4989 between the City of Cheyenne and Cheyenne Pipeline LLC for a renewal term to allow limited use of the public right-of-way for petroleum pipeline purposes and setting a fee – referred to Finance Committee.

[CA] Request to approve an additional dispensing room for City of Cheyenne restaurant liquor licensee Bella Fuoco, LLC, d/b/a Bella Fuoco, located at 2115 Warren Avenue, Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Announcement was made of a Public Meeting to be held April 24, 2017 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for the City of Cheyenne's Annual Action Plan Fiscal Year 2017-2018 prepared by the Cheyenne Housing and Community Development Office.

Under other business:

Jeff Dierksen spoke in reference to a petition he filed with the City Clerk's office in November regarding traffic relief on Pinto Lane, stating he intends to meet with the City Engineer to further discuss.

Mr. Johnson provided an update on several community projects and fund-raising activities in which he is involved. Mr. Roybal expressed appreciation to employees for the repair of awnings at the Spiker Downtown Parking Structure, damaged by hail last summer, and noted estimates to repair the clock were in process. Mr. White also expressed appreciation to City staff for their recent support involving the Dad's Making a Difference program.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:57 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
April 21, 2017